



DECISION

Complaint No. : POS/1542/2021/Hyd/62

Name and Address of the Complainant : Dr. Rashna Kanwal representative of Firdous Mughal (late), House No. A-149, Block-10, Rehan Memorial Cooperative Housing Society, Gulshan-e-Iqbal, Karachi.

Name of the Agency Complained against : Sindh Building Control Authority (SBCA)

Name & Designation of Investigation Officer : Syed Farrukh Habib
Director, Regional Office, Karachi (East)

Subject :- **COMPLAINT AGAINST THE BUILDER OF "ARSHIAM PRIDE" WHO UNJUSTLY SOLD BOOKED FLAT OF THE COMPLAINANT AND IS NOT RETURNING THE REMAINING AMOUNT OF RS. 20,00,000/- AS COMMITTED IN THE MEETING BEFORE THE REGIONAL DIRECTOR SBCA, HYDERABAD.**

THE COMPLAINT

Dr. Rashna Kanwal daughter of Firdous Mughal (late), filed complaint dated 03.06.2021, against the builder of Arshiam Pride Hyderabad that he has sold her mother's booked flat # C-207 to another party (Mst. Nighat) and failed to return the remaining amount of Rs. 20,00,000/- despite prior agreement before SBCA officials. She requested intervention of Ombudsman Office for recovery of the remaining amount or to secure possession of the flat.

PROCEEDINGS

2. After admission of the complaint by condoning the delay under Section 10 of the Establishment of the Office of Ombudsman for the Province of Sindh Act, 1991 (as amended up to date), and after receiving the mandatory Affidavit on Form "A" along with other relevant documents, report was called from the Agency. The SBCA Hyderabad submitted comments denying complainant's claims and stated that the matter was a private dispute with the builder. A reply/report in the matter was submitted to the office of Regional Director Hyderabad. Later on the request of the complainant this complaint was transferred to Karachi East office on 15.09.2022, from Regional Office Hyderabad. Complainant reiterated her allegations in the rejoinder submitted on 26.08.2022 to Regional Director Hyderabad, along with request for transfer of case for Hyderabad to Karachi.

3. Since shifting of case to Karachi the Investigation Officer issued regular notices to complainant to reply the Agency's report. Despite repeated reminders and hearing opportunities, the complainant failed to pursue the matter, nor did she respond to SBCA's explanation.

Contd...

FINDINGS

4. I have examined the case file and perused correspondence, reports and rejoinders etc., and observed that:
- i. The complaint pertains to a private dispute between the legal heir and an Estate Agent in Hyderabad & the builder.
 - ii. Complainant's non-prosecution demonstrates lack of interest in pursuing the matter administratively.
 - iii. SBCA has provided its explanation, which remains unchallenged.
 - iv. No further intervention is feasible.

DECISION

5. In view of above, the complaint is rejected and file consigned to record.

Given under my hand and seal of the office



Sd /-
(Muhammad Sohail Rajput)
Sitara-e-Imtiaz. PAS
Ombudsman Sindh

Karachi, dated

17.12, 2025